

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #05	CCRB Case #: 202007888	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 11/18/2020 5:13 PM	Location of Incident: 61st Precinct stationhouse	18 Mo. SOL 5/18/2022	Precinct: 61
Date/Time CV Reported Wed, 11/18/2020 5:37 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/02/2020 11:30 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Tosares Korchitmet	00256	942021	061 PCT
2. POM Gregory Felicetti	22314	969067	061 PCT
3. POM Richard Carolina	07705	963433	061 PCT
4. SGT Daniel McGuinness	05581	953086	061 PCT
5. POF Samantha Torlone	31939	968847	061 PCT
6. POM James Kelleher	17089	959724	061 PCT
7. POM Joseph Desena	31330	922248	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yaroslav Kavka	26807	968532	061 PCT
2. POM Richard Moore	26107	947811	061 PCT
3. POM Felix Chabanov	30733	953739	061 PCT
4. POM Shilendra Sawh	06697	931975	061 PCT
5. POM Paul Gallo	24413	938520	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Felicetti	Force: Police Officer Gregory Felicetti used physical force against § 87(2)(b)	A . Exonerated
B . POM Richard Carolina	Force: Police Officer Richard Carolina used physical force against § 87(2)(b)	B . Exonerated
C . POF Samantha Torlone	Force: Police Officer Samantha Torlone used physical force against § 87(2)(b)	C . Exonerated
D . POM Gregory Felicetti	Force: Police Officer Gregory Felicetti used physical force against § 87(2)(b)	D . Exonerated
E . POM Richard Carolina	Force: Police Officer Richard Carolina used physical force against § 87(2)(b)	E . Exonerated
F . POF Samantha Torlone	Force: Police Officer Samantha Torlone used physical force against § 87(2)(b)	F . Exonerated
G . POM James Kelleher	Force: Police Officer James Kelleher used physical force against § 87(2)(b)	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . SGT Tosares Korchitmet	Force: Sergeant Tosares Korchitmet used physical force against § 87(2)(b)	H . Exonerated
I . SGT Daniel McGuinness	Force: Sergeant Daniel McGuinness used physical force against § 87(2)(b)	I . Exonerated
J . POM Joseph Desena	Force: Police Officer Joseph Desena used a chokehold against § 87(2)(b)	J . Substantiated
K . POM Joseph Desena	Force: Police Officer Joseph Desena restricted § 87(2)(b) breathing.	K . Substantiated
L . SGT Daniel McGuinness	Abuse: Sergeant Daniel McGuinness forcibly removed § 87(2)(b) to the hospital.	L . Exonerated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 18, 2020, § 87(2)(b) filed this complaint over the phone with IAB, on behalf of her brother, § 87(2)(b). The same day, § 87(2)(b) § 87(2)(b) mother, filed a duplicate complaint over the phone with IAB. On December 2, 2020, the CCRB received this complaint from IAB under original log § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not witness the incident.

On November 18, 2020, at approximately 5:13 p.m., § 87(2)(b) went to the 61st Precinct stationhouse in Brooklyn to retrieve his belongings that had been vouchered after he was arrested the day prior. While he was waiting for his property, § 87(2)(b) stole an officer's uniform hat and was arrested for petit larceny. Police Officers Gregory Felicetti, Richard Carolina, and Samantha Torlone, assigned to the 61st Precinct, forcibly took § 87(2)(b) to the ground (**Allegations A-C: Force, exonerated**). PO Felicetti, PO Carolina, and PO Torlone, along with Police Officer James Kelleher, Sergeant Tosares Korchitmet, and Sergeant Daniel McGuinness (all assigned to the 61st Precinct), restrained § 87(2)(b) on the ground as he moved around, yelled, and threatened to harm himself (**Allegations D-I: Force, exonerated**). Police Officer Joseph Desena of the 61st Precinct placed his hand against the front of § 87(2)(b) neck and restricted his breathing (**Allegations J-K: Force, substantiated**). § 87(2)(b) was removed to the hospital on Sgt. McGuinness' authority (**Allegation L: Abuse of Authority, exonerated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was charged with petit larceny, criminal possession of stolen property, and criminal tampering (BR 01), and was released with a DAT for petit larceny (BR 02).

The investigation obtained BWC footage (BR 03-11, summarized at BR 12-15), stationhouse footage (BR 16-19), and a brief cell phone clip recorded by § 87(2)(b) girlfriend, § 87(2)(b) (BR 20). The stationhouse footage and cell phone video did not capture the incident. All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

Findings and Recommendations

Allegation (A) Force: Police Officer Gregory Felicetti used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Richard Carolina used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Samantha Torlone used physical force against § 87(2)(b)

§ 87(2)(b) testified (BR 21) that he was arrested after he took a police hat that was lying in the stationhouse and brought it outside. After officers handcuffed him, § 87(2)(b) lost his balance and was standing on one foot. He made a small "jerk[ing]" movement to catch his balance and the officers may have thought he was trying to get away. Several officers then tripped § 87(2)(b) and brought him down to the ground, where he fell onto his left side. § 87(2)(b) was not sure which officers took him to the ground and he was unable to provide further details about how he was brought down as it happened very quickly. Throughout the incident, § 87(2)(b) did not know if he did anything that the officers interpreted as him trying to harm himself.

PO Torlone's BWC footage (BR 04, at 05:33) shows § 87(2)(b) banging his head twice against the front stationhouse desk after he was fully handcuffed. PO Felicetti and PO Torlone pull § 87(2)(b)

§ 87(2)(b) away from the desk. PO Torlone says that they should get § 87(2)(b) on the floor so he does not bang his head anymore. PO Torlone tells § 87(2)(b) to get on the floor. PO Felicetti, who is behind § 87(2)(b) then pulls him downward. PO Torlone and PO Carolina, standing on either side of § 87(2)(b) also pull him to the ground.

TRI Reports prepared by PO Felicetti, PO Carolina, and PO Torlone documented that they used a forcible takedown against § 87(2)(b) to stop self-inflicted harm and in defense of self (BR 22).

PO Desena testified (BR 23) that he did not independently recall this incident and that he did not recall seeing officers take § 87(2)(b) to the ground. The investigation determined that no additional officer interviews were necessary to reach a disposition for these allegations.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 24).

BWC footage showed that § 87(2)(g) After § 87(2)(b) banged his own head on the front desk, PO Felicetti, PO Carolina, and PO Torlone § 87(2)(g) take him to the ground § 87(2)(g) it is therefore recommended that **Allegations A-C** be closed as **exonerated**.

Allegation (D) Force: Police Officer Gregory Felicetti used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Richard Carolina used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Samantha Torlone used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer James Kelleher used physical force against § 87(2)(b)

Allegation (H) Force: Sergeant Tosares Korchitmet used physical force against § 87(2)(b)

Allegation (I) Force: Sergeant Daniel McGuinness used physical force against § 87(2)(b)

§ 87(2)(b) recounted that approximately seven officers restrained him on the ground by holding his legs, thighs, arms, and back. The officers restraining § 87(2)(b) legs pressed their knees into his ankles, which caused a great deal of pain. § 87(2)(b) moved around because his ankles and wrists felt like they were about to snap and he was trying to get in a comfortable position. The officers held him on the ground for approximately 15 minutes. § 87(2)(b) sustained bruising on his mid to lower back, soreness to the back of his head, and he had difficulty walking after the incident. He also sustained redness, swelling, and bruising on his wrists and ankles from the handcuffs.

§ 87(2)(b) medical records from FDNY § 87(2)(b) detailed that § 87(2)(b) did not have any complaints and that he reported being momentarily upset after he was arrested again. Medical personnel did not document any physical injuries.

PO Torlone's BWC footage (BR 04, at 05:52) shows § 87(2)(b) moving around after officers take him to the ground. § 87(2)(b) loudly screams for officers to get off him, and PO Felicetti, PO Carolina, and PO Torlone attempt to control § 87(2)(b) body by holding his arms, legs, and

torso. PO Kelleher, Sgt. Korchitmet, and Sgt. McGuinness then approach and assist with trying to control § 87(2)(b) body. § 87(2)(b) yells loudly for the officers to get off him and yells that the officers are trying to kill him. Additional officers approach and try to help as § 87(2)(b) continues to panic and thrashes around his entire body. At various points, § 87(2)(b) bangs his own head against the ground and makes several statements about potentially harming himself. PO Carolina's BWC footage (BR 03, at 05:56) offers an alternative view and depicts PO Carolina, in part, sitting on the ground, trying to calm § 87(2)(b) down, and placing § 87(2)(b) head in his lap so that he does not hurt himself.

TRI Reports prepared by PO Felicetti, PO Carolina, PO Torlone, Sgt. McGuinness, and PO Kelleher documented that they wrestled and grappled with § 87(2)(b) to stop self-inflicted harm and in defense of self (BR 22).

PO Desena testified that he did not independently recall this incident and that he did not recall seeing any officers restrain § 87(2)(b) on the stationhouse floor. The investigation determined that no additional officer interviews were necessary to reach a disposition for these allegations.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. Any use of force must be reasonable under the circumstances and not excessive. Patrol Guide Procedure 221-01 (BR 24).

Once handcuffed and on the ground, § 87(2)(b) moved his body around, banged his head against the ground, threatened to harm himself, and was not compliant as officers tried to restrain him. § 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegations D-I** be closed as exonerated.

Allegation (J) Force: Police Officer Joseph Desena used a chokehold against § 87(2)(b)

Allegation (K) Force: Police Officer Joseph Desena restricted § 87(2)(b) breathing. § 87(2)(b) testified that, while he was on the ground, he began panicking because he felt trapped, felt like the officers were trying to kill him, and felt like he could not breathe. He blacked out for approximately five minutes, and he was uncertain about what happened in that time frame. § 87(2)(b) did not testify that PO Desena exerted pressure to the front of his neck or restricted his breathing.

§ 87(2)(b) medical records from FDNY § 87(2)(b) detailed that § 87(2)(b) did not have any complaints and that he reported being momentarily upset after he was arrested again. Medical personnel did not document any physical injuries.

PO Felicetti's BWC footage (BR 08, at 00:13) shows that PO Desena has four service stripes on his uniform sleeve. In PO Carolina's BWC footage (BR 03, beginning at approximately 07:08), § 87(2)(b) bangs his head against the ground multiple times. PO Desena, the officer with four service stripes on his sleeve, reaches down and holds § 87(2)(b) head by placing his thumb at the base of his skull and stretching his hand across § 87(2)(b) right ear and the right side of his face. It seems that PO Desena is trying to stabilize § 87(2)(b) head. § 87(2)(b) then bangs his own head against the ground again. PO Desena continues holding § 87(2)(b) head and rests § 87(2)(b) head atop his shoe so that his head does not hit the ground, and § 87(2)(b) briefly calms down. At 07:59, § 87(2)(b) begins screaming and PO Desena's hand changes position, such that his thumb presses against the right side of § 87(2)(b) neck and the rest of his hand stretches

across the front of § 87(2)(b) neck beneath his chin [see brief clip at BR 25]. § 87(2)(b) screams again and then abruptly stops screaming for approximately three seconds. At 08:03, PO Desena removes his hand from § 87(2)(b) who then lets out a few audible gasps and screams, “He’s choking me.” PO Felicetti’s BWC footage (BR 08, 00:53 to 01:17) provides an alternate angle of this portion of the incident.

PO Desena was not interviewed until a year after the incident, and he testified that he did not independently recall the incident. He denied placing § 87(2)(b) into a chokehold and denied restricting § 87(2)(b) breathing. After reviewing PO Felicetti’s BWC footage, which shows an alternate angle of the incident depicted in PO Carolina’s BWC footage, PO Desena testified that he did not independently recall making physical contact with § 87(2)(b) head or neck, though he acknowledged seeing it in the video. PO Desena explained, “I’m probably just holding a piece of him or something like that, I’m definitely not strangling him.” After reviewing PO Carolina’s BWC footage, PO Desena testified that he held § 87(2)(b) head for his safety because he had been banging his head. PO Desena could not tell exactly where on § 87(2)(b) his hand was situated, and he did not recall if his hand touched the front of § 87(2)(b) neck. PO Desena denied placing pressure on the front of § 87(2)(b) neck. PO Desena explained that it appeared that he was just trying to stabilize § 87(2)(b) head. PO Desena still did not have any independent recollection of the incident and was instead testifying based on what he saw in the video footage. PO Desena saw and heard in the video that § 87(2)(b) made gasping sounds, breathed audibly, and then made the statement, “He’s choking me.” PO Desena could not explain what was happening at that point and he did not know what caused § 87(2)(b) to react in that way. PO Desena maintained that he placed his hand on § 87(2)(b) head and neck area solely to prevent § 87(2)(b) from hitting his head against the ground.

§ 87(2)(g) BWC footage, § 87(2)(g) § 87(2)(b) appeared to depict PO Desena’s hand touching § 87(2)(b) throat, after which § 87(2)(b) stopped yelling for a few seconds. After PO Desena removed his hand, § 87(2)(b) audibly gasped and yelled about being choked. § 87(2)(g)

Officers are prohibited from using chokeholds. A chokehold shall include, but is not limited to, any pressure to the throat or windpipe which may prevent or hinder breathing or reduce intake of air. Patrol Guide Procedure 221-01 (BR 24).

§ 87(2)(g) § 87(2)(b) It is therefore recommended that **Allegations J-K** be closed as **substantiated**.

Allegation (L) Abuse of Authority: Sergeant Daniel McGuinness forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) deliberately banged his head against the front stationhouse desk and against the ground, and repeatedly made statements about killing himself. § 87(2)(b) was removed to a hospital for a psychiatric evaluation on Sgt. McGuinness’ authority.

§ 87(2)(b) testified that while he was on the stationhouse floor, he began panicking because he felt trapped, felt like the officers were trying to kill him, and felt like he could not breathe. § 87(2)(b)

blacked out for approximately five minutes, and he was uncertain about what happened in that time frame. § 87(2)(b) did not recall whether he made any statements about harming himself. § 87(2)(b) did not know if he did anything that the officers interpreted as him trying to harm himself. He did not threaten anyone or make any statements about harming anyone else.

In sum, PO Torlone's, PO Carolina's, and PO Felicetti's BWC footage shows the following: § 87(2)(b) bangs his head twice on the front stationhouse desk. PO Carolina asks Sgt. McGuinness if he called for an ambulance, and he replies that he did. While on the ground, § 87(2)(b) screams, hits his head against the ground, and says, "I can kill myself right now." He repeatedly says, "It's over," and that he is done with life. EMTs arrive and remove § 87(2)(b) to § 87(2)(b) Hospital.

PO Carolina prepared a Medical Treatment of Prisoner Report (BR 26), which detailed that § 87(2)(b) banged his head on the ledge of the 61st Precinct desk and the floor, and that he was taken to § 87(2)(b) Hospital.

The investigation determined that no additional officer interviews were necessary to reach a disposition for this allegation.

Officers must take into protective custody and remove to the hospital individuals who appear to be mentally ill or temporarily deranged and are conducting themselves in a manner that an officer reasonably believes is likely to result in serious injury to themselves or others. Patrol Guide Procedure 221-13 (BR 27).

As § 87(2)(b) banged his head against the stationhouse desk, banged his head against the ground, and made statements about killing himself, § 87(2)(g) It is therefore recommended that **Allegation L** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Felicetti has been a member of the NYPD for two years and this is the first CCRB complaint to which he has been a subject.
- PO Carolina has been a member of the NYPD for four years and this is the first CCRB complaint to which he has been a subject.
- PO Torlone has been a member of the NYPD for two years and has been a subject in one CCRB complaint and two allegations, none of which have been substantiated. § 87(2)(g) [REDACTED]
 - 202008276 is currently pending investigation.
- PO Desena has been a member of the NYPD for 23 years and has been a subject in 12 CCRB complaints and 19 allegations, none of which have been substantiated. § 87(2)(g) [REDACTED]
- Sgt. McGuinness has been a member of the NYPD for nine years and has been a subject in four CCRB complaints and four allegations, one of which was substantiated:
 - 201304546 involved a substantiated allegation of vehicle search against Sgt. McGuinness. The Board recommended Charges and the NYPD imposed Formalized Training.
 - 202002611 is currently pending investigation.
- Sgt. Korchitmet has been a member of the NYPD for 15 years and has been a subject in four CCRB complaints and six allegations, none of which have been substantiated. § 87(2)(g) [REDACTED]
 - 202101736 is currently pending investigation.
- PO Kelleher has been a member of the NYPD for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 24, 2022, the NYC Comptroller's Office has no record of a Notice of Claim being filed regarding this complaint (BR 29).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 5

Investigator: Laura Strauss SI Laura Strauss March 7, 2022

	Signature	Print Title & Name	Date
Squad Leader:	<u><i>Daniel Giansante</i></u>	<u>IM Daniel Giansante</u>	<u>March 7, 2022</u>
	Signature	Print Title & Name	Date
Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date